

SURFACE USE AND DAMAGE AGREEMENT

This Surface Use and Damage Agreement ("Agreement") is entered into on October 17, 2024 between Bigelow Family Partnership, LP ("Surface Owner") and Powder River Resources, LLC ("Operator").

Recitals

WHEREAS Operator holds oil and gas leasehold rights beneath the lands of Surface Owner described as Section 7, Block 34, T&P RR Co. Survey, Abstract No. 89, Martin County, Texas (40.00 acres); and

WHEREAS the parties desire to set forth the terms governing Operator's use of the surface for drilling and production operations;

Surface Damages (Area of Disturbance)

Operator shall pay Surface Owner \$25,000.00 per well pad as initial surface damages within the area of disturbance, plus \$30.00 per rod for new roads and pipelines, and shall separately compensate for damage to crops, livestock, fences, and improvements outside the area of disturbance.

Location of Operations and Setbacks

Well pads, tank batteries, and central facilities shall be located no closer than 500 feet to any existing residence or water well without the Surface Owner's written consent.

Operator shall consult Surface Owner on locations before staking, fence all production facilities, and control noxious weeds.

Interim and Final Reclamation

Operator shall perform interim reclamation of areas not needed during production (replace topsoil, control weeds, reseed). Upon plugging and abandonment, Operator shall remove all equipment, recontour to approximate original grade, replace topsoil, and reseed with an approved mix within twelve (12) months (final reclamation).

Water and Environmental Protection

Operator shall not use fresh water from Surface Owner's wells or ponds without a separate written agreement; shall take measures to prevent soil erosion and pollution of land, water, springs, and ponds; and shall not release or discharge toxic or hazardous substances on the property.

Insurance and Indemnity

Operator shall maintain commercial general liability and environmental liability insurance in commercially reasonable amounts and shall indemnify and hold Surface Owner harmless from claims arising out of Operator's operations on the property.

SURFACE OWNER: Bigelow Family Partnership, LP

OPERATOR: Powder River Resources, LLC

STATE OF TEXAS

COUNTY OF MARTIN

This instrument was acknowledged before me on the date written above by Bigelow Family Partnership, LP.

Notary Public

My commission expires: _____